

ASCII MASTER FLOW – PANEL 1/9: Two offices and the parliamentary executive design

PRESIDENT: ARTICLES 52-62, 71, 74

constitutional Head of State + formal Union executive power + national continuity

VICE-PRESIDENT: ARTICLES 63-71

ex officio Chairman of Rajya Sabha + constitutional reserve for presidential vacancy

PARLIAMENTARY LOGIC

President ordinarily acts on ministerial advice

Vice-President ordinarily works inside Parliament

CURRENT DATED CONTROL: 24 AUGUST 2026

Droupadi Murmu -> President

C. P. Radhakrishnan -> Vice-President and Rajya Sabha Chairman.

ASCII MASTER FLOW – PANEL 2/9: Presidential election, vote value and dispute route

ELECTORAL COLLEGE: ARTICLE 54

elected MPs + elected MLAs of States + elected MLAs of Delhi and Puducherry
exclude nominated MPs, nominated MLAs and State Legislative Council members

WEIGHTING: ARTICLE 55

MLA vote value -> 1971 census population / elected Assembly strength / 1000

MP vote value -> total MLA vote value / elected MPs

COUNT

proportional representation by single transferable vote + secret ballot

DISPUTE

Article 71 -> Supreme Court; vacancy does not invalidate the election.

ASCII MASTER FLOW – PANEL 3/9: Qualifications, oath, tenure, vacancy and removal

PRESIDENT

citizen + 35 years + qualified for Lok Sabha + no office of profit
oath before Chief Justice of India / senior-most available Supreme Court judge
five-year term; re-election allowed; continues until successor enters office
casual vacancy election within six months

IMPEACHMENT: ARTICLE 61

either House starts -> 14-day notice -> one-fourth signatures
-> two-thirds of total membership in each House -> violation of Constitution

ARTICLE 361

official-act immunity and procedural protection do not create substantive impunity.

ASCII MASTER FLOW – PANEL 4/9: Aid and advice, reconsideration and bounded discretion

ARTICLE 74

Council of Ministers with PM at head aids and advises the President
President may require reconsideration once
reconsidered advice binds
court cannot inquire into what advice was tendered

SITUATIONAL CHOICE

hung Lok Sabha -> identify person most likely to command confidence
outgoing ministry -> continuity until an alternative is formed

NOT PERSONAL POLICY POWER

Shamsher Singh (1974): constitutional head operates through responsible government.

ANSWER VERDICT

the office can warn, encourage and require reconsideration, not create a rival executive.

ASCII MASTER FLOW – PANEL 5/9: Seven presidential power clusters

EXECUTIVE -> appointments, Rules of Business, administration in President's name

LEGISLATIVE -> summon, prorogue, dissolve LS, address, nominate, assent

FINANCIAL -> recommendation routes, Budget presentation, Finance Commission

JUDICIAL -> Article 72 clemency + Article 143 reference

DIPLOMATIC -> credentials and treaty form, subject to constitutional law

MILITARY -> Supreme Commander in constitutional form

EMERGENCY -> Articles 352, 356 and 360 on constitutional advice

CONTROL

formal breadth is ordinarily exercised through ministerial responsibility and review.

ASCII MASTER FLOW – PANEL 6/9: Veto and ordinance: the executive-legislative interface

ARTICLE 111

ordinary Bill -> assent / withhold / return once
repassed ordinary Bill -> assent required
Money Bill -> cannot be returned
Constitution Amendment Bill -> assent required
pocket veto -> no textual decision deadline for Union Bills

ARTICLE 123

Parliament not both in session + immediate action necessary
-> ordinance has force of Act -> laid before Parliament
-> ceases six weeks after reassembly unless replaced / disapproved / withdrawn

CASE CONTROL

D.C. Wadhwa (1986) and Krishna Kumar Singh (2017) reject routine re-promulgation.

ASCII MASTER FLOW – PANEL 7/9: Article 72 clemency and the Governor comparison

FIVE FORMS

pardon | reprieve | respite | remission | commutation

PRESIDENT: ARTICLE 72

court-martial cases

offences against Union executive field

all death-sentence cases

GOVERNOR: ARTICLE 161

State executive field; cannot pardon a court-martial

death sentence may be suspended, remitted or commuted, not pardoned under Article 161

RULE-OF-LAW CONTROL

ministerial advice + limited review for mala fides, arbitrariness or irrelevant material.

ASCII MASTER FLOW – PANEL 8/9: Vice-President: election, removal, Chair and acting role

ELECTION

members of both Houses, elected and nominated; State legislatures excluded

REMOVAL

Rajya Sabha resolution by majority of all then members

-> agreed by Lok Sabha -> 14-day notice

not impeachment; no 'violation of Constitution' ground is required

CHAIRMAN

procedure, discipline and casting vote; no ordinary first vote

Tenth Schedule adjudication is reviewable; own-removal debate uses special arrangement

ACTING PRESIDENT

discharges presidential functions during vacancy / inability; separate office rules apply.

ASCII MASTER FLOW – PANEL 9/9: Conventions, cases, traps and the answer spine

CASE / CONVENTION ROUTES

Shamsher Singh (1974) -> constitutional head

Kehar Singh (1988) / Maru Ram (1980) -> clemency on advice with bounded review

Krishna Kumar Singh (2017) -> ordinance limits

hung House -> confidence, not personal preference

PRELIMS FIREWALL

President and Vice-President colleges are different

President impeachment != Vice-President removal

six-month vacancy rule applies to President, not Vice-President

Money Bill cannot be returned; Amendment Bill requires assent

MAINS SPINE

constitutional position -> exact power -> advice/procedure -> case -> bounded discretion

-> accountability -> sentinel without a rival popular mandate.